

25SMCV04807 25SMCV04807

County: los-angeles

Division: Civil Law and Motion

Department: 205

Hearing date: 2026-08-19

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Case Number: 25SMCV04807 Hearing Date: August 19, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

JILL SADLER,

Plaintiff,

v.

HYUNDAI MOTOR AMERICA, et al.,

Defendants.

Case No.: 25SMCV04807

Hearing Date: August 19, 2026

[TENTATIVE] order RE:

PLAINTIFF'S MOTION FOR

ATTORNEYS' FEES, COSTS AND

EXPENSES

BACKGROUND

This is lemon law case. Plaintiff Jill Sadler bought a new 2024 Hyundai IONIQ. The car suffered from numerous defects which could not be repaired after several attempts. Plaintiff claims the car was unsafe and virtually useless due to the frequency of breakdowns and the amount of time the car was out of service due to repair attempts.

Plaintiff made a demand for repurchase from Defendant Hyundai Motor America. When Defendant failed to repurchase the car, Plaintiff filed suit on September 15, 2025 (less than a year ago), alleging breach of express warranty, breach of implied warranty and violation of the Song Beverly Consumer Warranty Act. Defendant answered, denying all liability.

The parties have now settled the case for \$48,417.87 plus reasonable attorneys' fees and costs. The parties could not agree on the proper amount of fees and costs, resulting in this hearing on Plaintiff's motion for attorneys' fees and costs. Plaintiff seeks \$32,761.70 which consists of (1) \$26,605 in attorney's fees, (2) a 1.2 multiplier enhancement of \$5,321, and (3) \$835.70 in costs.

LEGAL STANDARD

Parties to litigation must generally bear their own attorney's fees, unless they otherwise agree or a statute provides otherwise. (Code Civ. Proc. § 1021.) Here, the Song-Beverly Act ("SBA") provides for the award of attorneys' fees to prevailing plaintiffs as follows:ç

If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.ç

(Civ. Code § 1794, subd. (d).)ç

California courts have consistently "rejected the motion that the fee award must be proportionate to the amount of damages recovered." (Niederer v. Ferreira (1987) 189 Cal.App.3d 1485, 1508 (1987).) An attorneys' fee award is to be based upon actual time expended rather than being tied to any percentage of the recovery. (Drouin v. Fleetwood Enterprises (1985) 163 Cal.App.3d 486, 493.) Because Plaintiff is suing under the SBA, the legislative policies are in favor of recovery of all attorney fees reasonably expended without limiting the fees to a proportion of the actual recovery. (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 164.)

The fee setting inquiry in California ordinarily begins with the "lodestar" method, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. Such an approach anchors the trial court's analysis to an objective determination of the value of the attorney's services, ensuring that the amount awarded is not arbitrary. (Id. at 48, n.23.)

The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. (Serrano v. Priestç(1977) 20 Cal.3d 25, 49.)çççThe factors considered in determining the modification of the lodestar include the nature and difficulty of the litigation, the amount of money involved, the skill required and employed to handle the case, the attention given, the success or failure,çand other circumstances in the case. (EnPalm, LLC v.çTeitlerçFamily Trustç(2008) 162 Cal. App. 4th 770, 774 (emphasis in original).)

A negative modifier is appropriate when duplicative work has been performed. (Thayer v. Wells Fargo Bank,çN.A.ç(2001) 92 Cal.App.4th 819.) On the other hand, a positive multiplier may be applied to compensate the attorney for the prevailing party at a rate reflecting the risk of nonpayment in contingency cases. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1138.)

"It is well established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court, whose decision cannot be reversed in the absence of an abuse of discretion." *¿* (Melnyk v. Robledo (1976) 64 Cal.App.3d 618, 623.)*¿*

DISCUSSION

There is no dispute that Plaintiff is the prevailing party, and under the SBA, she is entitled to "attorneys' fees based on actual time expended, determined by the court to have been reasonably incurred." (Civ. Code § 1794.)

In calculating the attorneys' fees, the Court starts with the lodestar which is the reasonable hourly rate multiplied by the reasonable hours expended. (Donovan v. Poway Unified Sch. Dist. (2008) 167 Cal.App.4th 567, 628.) This case was litigated by a single attorney.

Arye Abraham received his Juris Doctorate and Business Law Certificate from the University of Southern California Gould School of Law in 2020. In 2023, he founded Abraham Law, PC, with a primary focus in Song-Beverly cases. (Abraham Decl. ¶ 4-5.) He seeks an hourly rate of \$675. Other courts have approved his previous hourly rate of \$625, with one court approving his 2026 hourly rate of \$675. (Exs. 1-5 to Abraham Decl.)

The Court concludes that an hourly rate of \$675 for a lemon law attorney who has been practicing for less than 6 years is not reasonable. The Court will instead use an hourly rate of \$450. (See, e.g., *Alma Delia Rios v. Jaguar Land Rover North America, LLC*, L.A.S.C. Case No. 21STCV24564 (Hearing Date: May 3, 2023; Dept. 39) (concluding that \$450 per hour was reasonable for a settled Lemon Law case); *Igor Bogdanovskiy v. Mercedes-Benz USA, LLC et al.*, CDCA Case No. 2:23 cv-05312-AB-MAR (Hearing Date: January 24, 2024) (concluding that \$375 per hour was reasonable for a settled Lemon Law case and that a negative multiplier should be applied to reduce the fees sought); *Pogosyan v. Jaguar Land Rover North America, LLC*, L.A.S.C. Case No. 23AHCv00364 (Hearing Date: June 9, 2025; Dept. 3) (concluding that \$450 per hour was reasonable for a settled Lemon Law case.); *Farhadian v. Jaguar Land Rover North America, LLC*, L.A.S.C. Case No. 24STCV32943 (Hearing Date: September 9, 2025; Dept. 17) (concluding that only \$500 per hour was reasonable for an experienced Lemon Law attorney); *Minasyan v. Jaguar Land Rover North America, LLC*, L.A.S.C. Case No. 22STCV09257 (Hearing Date: July 17, 2025; Dept. 10) (concluding that \$500 per hour was reasonable for a settled Lemon Law case).

Turning to the number of hours worked, the Court has the power to make "across-the-board percentage cuts either in the numbers of hours claimed or in the final lodestar figure." (*Gonzalez v. City of Maywood*, 729 F.3d 1196, 1203 (9th Cir. 2013) (emphasis added). "A reduced [attorneys' fees] award might be fully justified by a general observation that an attorney over litigated a case . . . or that the opposing party has stated valid objections." (*Gorman v. Tassajara Dev. Corp.* (2009) 178 Cal.App.4th 44, 101 (emphasis added); see also *Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 38.)

Counsel claims he spent 40.4 hours in prosecuting this case. This case involved one motion (the instant motion for fees), one notice of deposition (with no other fact or expert discovery) and one case management conference. The Court concludes that 40.4 hours is excessive given the limited amount of litigation that took place.

The Court concludes that 22 hours is more than sufficient for counsel to have reviewed the repair history, prepared the complaint (which appears to be a simple cut and paste from other cases), communicate with opposing counsel and his client, and prepare the present motion for fees (which would have taken little time considering Counsel's niche lemon law practice).

Plaintiff requests that the Court apply a 1.2 multiplier to counsel's fees due to the novelty, difficulty, and skill displayed in the case and the contingent nature of the case. The Court is permitted, but not required, to apply a multiplier to an award for attorney's fees if, inter alia, there was contingent risk or exceptional skill displayed by the attorneys. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138.) There is no evidence that this case involved anything novel, nor did it require particular skill. This is a garden-variety lemon law action. There is no basis for a multiplier.

Additionally, under the Song-Beverly Act, a prevailing buyer is entitled to recover his costs and expenses. (See, Civ. Code § 1794(d) [emphasis added].) The California Legislature intended the word “expenses” to cover outlays not included in the detailed statutory definition of “costs,” and the Song-Beverly Act’s legislative history demonstrates the Legislature exercised its power to permit recovery of a host of litigation expenditures beyond those permitted by Code of Civil Procedure § 1033.5. (Jensen v. BMW of North America, Inc. (1995) 35 Cal.App.4th 112, 137-138.)

A verified memorandum of costs generally satisfies the moving party’s burden of establishing costs necessarily incurred. (Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682). The burden shifts to the defendant to properly rebut the claimed costs. Plaintiff has filed a verified memorandum of costs. The costs for filing fees, jury fees, service fees and electronic filing fees appear reasonable. Accordingly, the Court will award the entire amount of costs and expenses sought by Plaintiff, totaling \$835.70.

CONCLUSION AND ORDER

For the foregoing reasons, the Court GRANTS IN PART and DENIES IN PART Plaintiff’s motion for attorneys’ fees, costs and expenses. The Court awards fees and costs in the amount of \$10,735.70.

DATED: August 19, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior Cou